

24STLC06981 24STLC06981

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 24STLC06981 Hearing Date: September 3, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Hyun

Park's Motion to Vacate Dismissal is denied.

Analysis:

Plaintiff Hyun Park ("Plaintiff"), in propria persona, filed the instant action for unfair business practices and fraudulent concealment against Defendant Glen Coutinho ("Defendant Coutinho") on September 26, 2024. On April 21, 2025, Plaintiff filed a First Amended Complaint for breach of contract against Defendant Coutinho and Kenny Kapoor ("Defendant Kapoor"). Following Defendant Coutinho's failure to file a responsive pleading, the Court entered their default on June 4, 2025.

The case came for trial on March 26, 2026, at which time Plaintiff appeared and made an oral request to dismiss the action without prejudice. (Minute Order, 03/26/26.) The Court dismissed the action pursuant to the request and vacated future hearing dates in the case. (Ibid.) On May 4, 2026, Plaintiff filed a request to dismiss Defendant Kapoor and Does 1-10, which the Court entered on the same day.

Plaintiff filed the instant Motion to Vacate Dismissal on August 3, 2026. No opposition has been filed to date.

Discussion

The

Motion is brought pursuant to Code of Civil Procedure, section 473, subdivision (b). Under this statute, an application for relief must be made within a reasonable time, no more than six months after entry of the order from which relief is sought, and must be accompanied by an affidavit of fault attesting to the party or attorney's mistake, inadvertence, surprise or neglect. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.) A timely request for relief from an entry of default, default judgment, or involuntary dismissal, based on attorney fault, must be granted. (Code Civ. Proc., § 473, subd. (b).)

The

Motion inaccurately recounts the procedural history of the case, and in doing so, moves to vacate a dismissal that did not occur. Specifically, Plaintiff moves to vacate a dismissal entered "by reason of plaintiff's failure to appear at final hearing on 06/18/2026." (Motion, p. 1:27-28.) As detailed above, no hearing occurred on June 18, 2026. Instead, Plaintiff appeared on the March 26, 2026 trial date and requested dismissal of the First Amended Complaint (Minute Order, 03/26/26.) Plaintiff also separately filed a request to dismiss Defendant Kapoor and Does 1-10 on May 4, 2026. No dismissal due to Plaintiff's failure to appear occurred; rather, Plaintiff themselves sought dismissal of the action.

Plaintiff's explanation of the dismissal, and of the grounds to vacate it, therefore, do not demonstrate that it was entered through mistake, inadvertence, surprise, or excusable neglect. Nor is the Motion supported by a declaration that attests to the facts upon which Plaintiff moves. Instead, the supporting declaration sets forth facts regarding the basis of Plaintiff's action. (Motion, Park Decl.) Finally, the Motion does not address whether the request for relief, which was filed more than four months after dismissal, was made in a reasonable time. Based on the foregoing, the Motion fails to meet any of the statutory criteria for relief from dismissal of the action.

Conclusion

Plaintiff Hyun

Park's Motion to Vacate Dismissal is denied.

Judicial Assistant to give notice.